

26STCV17030 26STCV17030

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Case Number: 26STCV17030 Hearing Date: September 24, 2026 Dept: 311

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil Division

Central District, Stanley Mosk Courthouse, Department 311

Tentative Ruling

26STCV17030

KAKHABERI GVANTSELADZE vs LUV CAR WASH LLC

September 24, 2026

8:30 AM

NATURE OF PROCEEDINGS: DEFENDANT'S DEMURRER TO COMPLAINT. DEFENDANT'S MOTION TO STRIKE.

RULING:

The Court sustains the

Demurrer and grants the Motion to Strike, with leave to amend.

Plaintiff may serve and file a First Amended

Complaint (FAC) on or before October 23, 2026.

Defendant to give notice.

I. BACKGROUND

On June 1, 2026, KAKHABER GVANTSELADZE (Plaintiff), a self-represented litigant, filed a Complaint against LUV CARWASH, LLC (Defendant), apparently implying Causes of Action for Negligence and Unfair Business Practices.

The Complaint contains allegations that Plaintiff's was severely damaged by malfunctioning equipment inside Defendant's automated carwash, at 6651 Sunset Blvd, Los Angeles.

The Complaint improperly has a Motion for Summary Judgment attached as an exhibit.

On August 10, 2026, Defendant filed the Demurrer to the Complaint and Motion to Strike various allegations, on grounds including that the Complaint fails to allege claim elements beyond conclusions, and includes unauthorized damages such as emotional distress for property damage, such that leave to amend should be denied.

Plaintiff has not filed any Opposition to the Demurrer or Motion to Strike.

II. LEGAL STANDARD

Demurrers are to be sustained where a pleading fails to plead adequately any essential element of the cause of action. (Cantu v. Resolution Trust Corp. (1992) 4 Cal.App.4th 857, 879-880.)

"It is both improper and insufficient for a plaintiff to simply plead the evidence by which [she or] he hopes to prove such ultimate facts." (Careau & Co. v. Sec. Pac. Bus. Credit (1990) 222 Cal.App.3d 1371, 1390.) "A pleading is no place to quote, paraphrase, or even allude to the testimony of witnesses," or to summarize deposition testimony and other evidence. (Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC (2008) 162 Cal.App.4th 858, 868, fn.1.) A summary judgment "motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing. If the notice is served by mail, the required 81-day period of notice shall be increased by 5 days if the place of address is within the State of California...." (Code Civ. Proc., § 437c, subd. (a)(2).)

Rarely should judges sustain demurrers to initial complaints without giving leave to amend. (Tarrar Enterprises, Inc. v. Associated Indemnity Corp. (2022) 83 Cal.App.5th 685, 689.) "If the plaintiff has not had an opportunity to amend the complaint in response to the demurrer, leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment." (City of Stockton v. Superior Court (2007) 42 Cal.4th 730, 747.) Courts generally allow at least one time to amend a complaint, after sustaining a demurrer, even without any request for leave to amend. (McDonald v. Superior Court (1986) 180 Cal.App.3d 297, 303.)

The failure to file a proper and timely opposition in trial court creates a waiver of the issues on any appeal. (Bell v. Am. Title Ins. Co. (1991) 226 Cal.App.3d 1589, 1602; Cabrini Villas Homeowners Assn. v. Haghverdian (2003) 111 Cal.App.4th 683, 693.) "A failure to oppose a motion may be deemed a consent to the granting of the motion." (Cal. Rules of Court, rule 8.54(c).)

A party appearing without a lawyer is not entitled to any greater privileges than an attorney following legal requirements. (Bianco v. California Highway Patrol (1994) 24 Cal.App.4th 1113, 1125-1126; Morgan v. Ransom (1979) 95 Cal.App.3d 664, 669; Burnete v. La Casa Dana Apartments (2007) 148 Cal.App.4th 1262, 1267.)

III. ANALYSIS

Defendant demurs to the Complaint, because it fails to allege facts, such as what aspect of the carwash system failed, how Defendant controlled or operated it negligently, and what act or omission caused the alleged damage. Additionally, Defendant criticizes allegations of Unfair Business Practices, because Negligence and any other bases do not support it. Also, Defendant objects to Strict Liability if intended as a claim, including because Defendant is not a manufacturer of products. Finally, Defendant argues uncertainty caused by the format that is not organized by any separated Causes of Action.

Additionally, Defendant moves to strike the following allegations, as being unauthorized damages:

1. Section III, 3 line, "bad faith evasion."
2. Section IV, line 4, "bad faith campaign of evasion."
3. Section IV, Request for Treble Damages.
4. Section IV lines 8-9, Treble Damage Multiplier (3x Penalty) $\$7,290.00 \times 3 = \$21,870$.
5. Section IV, line 13, "defendant is strictly liable."
6. Section IV "Documented Medical and Physical Collapse", paras. 13-16, including "physical injuries."
7. Section VII, No. 1 Treble Property Damage (Per UCL 17200): \$21,870.
8. Section VII, No. 6 Emotional compensation for humiliation, discrimination, total ignorance and complete plaintiff's and elderly people that he is supporting all his life health and life: \$125,00000.

(Motion, p. 2.)

Demurrers are to be sustained where a pleading fails to plead adequately any essential element of the cause of action. (Cantu v. Resolution Trust Corp. (1992) 4 Cal.App.4th 857, 879-880.)

"Each separately stated cause of action, count, or defense must specifically state: [¶] (1) Its number (e.g., "first cause of action"); [¶] (2) Its nature (e.g., "for fraud")..." (Cal. Rules of Court, rule 2.112.) The failure to identify claims and parties by labeling causes of action may render a complaint uncertain, except where the complaint contains allegations sufficiently apprising defendants of the issues, in which case a demurrer should be overruled. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139.) The ground of uncertainty relates to alleged facts, and does not lie as to the label, legal theory or effect of a cause of action. (County of Santa Clara v. Hayes Co. (1954) 43 Cal.2d 615, 619-620.)

"An 'unlawful' practice requires violation of another statute, and a business practice may be 'unfair' even if not otherwise proscribed by statute as long as the practice is not expressly authorized by law." (People ex rel. Dept. of Motor Vehicles v. Cars 4 Causes (2006) 139 Cal.App.4th 1006, 1016.) See also Gutierrez v. Carmax Auto Superstores California (2018) 19 Cal.App.5th 1234, 1261 ["causes of action under the ... UCL must be stated with reasonable particularity, which is a more

lenient pleading standard than is applied to common law fraud claims.”]; *Quelimane Co. v. Stewart Title Guar. Co.* (1998) 19 Cal.4th 26, 46 [holding claims for unfair business practices need not be pled specifically, and impliedly disapproving *Khoury v. Maly's of Cal.* (1993) 14 Cal.App.4th 612, 619 (“A plaintiff alleging unfair business practices under these statutes must state with reasonable particularity the facts supporting the statutory elements of the violation.”)]; *Gregory v. Albertson's, Inc.* (2002) 104 Cal.App.4th 845, 857 [“the demurrer was properly sustained because the complaint ‘identifies no particular section of the statutory scheme [of antitrust laws] which was violated and fails to describe with any reasonable particularity the facts supporting violation.’”]; *Linear Technology Corp. v. Applied Materials, Inc.* (2007) 152 Cal.App.4th 115, 134-135 [“Whether a practice is deceptive, fraudulent, or unfair is generally a question of fact which requires ‘consideration and weighing of evidence from both sides’ and which usually cannot be made on demurrer.”]; *Wolski v. Fremont Investment & Loan* (2005) 127 Cal.App.4th 347, 357 [a cause of action for violation of Business and Professions Code section 17200 fails where it is predicated on a violation of law that fails]; *Bank of the West v. Superior Court* (1992) 2 Cal.4th 1254, 1266 [“The Unfair Business Practices Act defines ‘unfair competition’ as any ‘unlawful, unfair or fraudulent business practice and unfair, deceptive, untrue or misleading advertising....’ (S 17200.)”].)

The law of negligence is declared in the Civil Code section 1714. (*Simmons v. Stephens* (1920) 48 Cal. App. 351, 354.) Civil Code section 3333 limits damages for negligence to detriment proximately caused by act or omission. (*Barthels v. Santa Barbara Title Co.* (1994) 28 Cal.App.4th 674, 679. “Ordinarily, negligence may be pleaded in general terms and the plaintiff need not specify the precise act or omission alleged to constitute the breach of duty.” (*Lopez v. S. Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 795. *Accord, Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747; *Crouse v. Brobeck* (1998) 67 Cal.App.4th 1509, 1532 [to allege negligence claims, complainants need only state what occurred, and generally that the acts were negligently done, but “need not state the specific act or omission constituting negligent conduct.”]. But see *Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 527 [general allegations must set forth acts or omissions which are said to have been negligent].) “In order to state a cause of action for negligence, the complaint must allege facts sufficient to show a legal duty on the part of the defendant to use due care, a breach of such legal duty, and the breach as the proximate or legal cause of the resulting injury.” (*Bellah v. Greenson* (1978) 81 Cal.App.3d 614, 619.) As to negligence claims, causation may be alleged “succinctly and generally,” unless the pled facts “do not naturally give rise to an inference of causation....” (*Bockrath v. Aldrich Chemical Co., Inc.* (1999) 21 Cal.4th 71, 78.) “ ‘In an action to recover damages resulting from the negligence of the defendant, “a general allegation of negligence upon the part of defendant is sufficient.” In such a case, “the negligence is the ultimate fact to be pleaded, and is not a legal conclusion.’ ” (*Kienlen v. Holt* (1930) 106 Cal.App. 135, 139–140.)

Here, Plaintiff has failed to file any Opposition addressing law set forth above and in the Defendant's filings. A judge in a civil case is not “obligated to seek out theories [a party] might have advanced, or to articulate ... that which ... [a party] has left unspoken.” (*Mesecher v. County of San Diego* (1992) 9 Cal.App.4th 1677, 1686.)

IV. CONCLUSION

Therefore, the Court sustains the Demurrer and grants the Motion, with leave to file an amended complaint, based upon the substantive Demurrer pages, and the law and procedures referenced herein.